

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/14/26 TIME: 10:00 A.M. DEPT: A CASE NO: CV0008942

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: MATTHEW NIEHAUS, ET
AL

vs.

DEFENDANT: EAGLE FOOTBALL
HOLDINGS LIMITED, ET AL

NATURE OF PROCEEDINGS: 1) MOTION - QUASH
2) MOTION - QUASH
3) MOTION - QUASH
4) MOTION - QUASH

RULING

There are currently four separate motions to quash for lack of personal jurisdiction before the Court brought by (1) James Dinan and Alexander Knaster; (2) Mark Affolter and James Miller; (3) Yongmee Kang; and (4) John Textor and Frank Patterson.¹

In the briefing on the motions, Plaintiffs request that if the Court is inclined to grant the motions to quash it should instead continue the hearing for a period of 90 days to permit limited discovery on the issue of personal jurisdiction. A “plaintiff attempting to assert jurisdiction over a nonresident defendant is entitled to an opportunity to conduct discovery of the jurisdictional facts necessary to sustain its burden of proof.” (*In re Automobile Antitrust Cases I & II* (2005) 135 Cal.App.4th 100, 127.) This court has discretion to continue a hearing on a motion to quash to allow such discovery where the plaintiff demonstrates that “discovery is likely to lead to the production of evidence of facts establishing jurisdiction.” (*Ibid.*)

Having reviewed the declarations and memoranda submitted by the parties, the Court determines that there is a reasonable basis to believe further discovery may lead to evidence sufficient to establish jurisdiction. Therefore the Court exercises its discretion and continues the hearing on all four motions to quash for 90 days to allow Plaintiffs to pursue jurisdictional discovery.

¹ On July 7, 2026, the Court entered a stipulation and order scheduling the first three motions to be heard on July 28, 2026 and permitting Plaintiffs to file a single opposition to all three motions. This hearing date was later continued to August 14, 2026. A fourth motion, brought by Textor and Patterson, was also set for hearing on this date. Plaintiffs have filed a separate opposition to Textor and Patterson’s motion.

The Court does not rule on the motion filed by Frank Patterson as Plaintiffs have agreed to dismiss him as a defendant.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for August, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/14/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2202485

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: LELAND SPELMAN, ET AL	
vs.	
DEFENDANT: STATE FARM GENERAL INSURANCE COMPANY, ET AL	

NATURE OF PROCEEDINGS: 1) MOTION - STAY
2) MOTION - RECONSIDERATION
3) MOTION – RELIEF- DISCOVERY FACILITATOR PROGRAM

RULING

There are three motions pending. This matter was last called on June 26, 2026, with the parties appearing in court. They stipulated for the court to continue the hearing on all three motions, to allow more time for the parties to engage in settlement discussions.

The parties did not provide the court with an update regarding the motions on calendar.

Appearances are required.

The court repeats the tentative rulings issued regarding the motions pending below for the convenience of the parties:

Plaintiffs Leland Spelman and Linnea Carlson (“Plaintiffs”) filed a Motion for Relief from Deemed Admissions; Motion to Stay Summary Judgment Proceedings; and Motion for Reconsideration. The motions were filed on March 27, 2026. Defendant State Farm, et al., filed opposition briefs on June 11, 2026. Plaintiff filed reply briefs on June 15, 2026.

This matter was last called in this department on March 20, 2026, after the court granted Defendant’s Motion to Dismiss for Failure to Prosecute, and Motion to have the matters set forth in their Requests for Admission Deemed Admitted for Plaintiffs’ Failure to Respond.

Despite prevailing substantively on all issues, counsel for the Defendant indicated that State Farm was nevertheless willing to engage in good faith negotiations with the Plaintiffs to resolve the case. Unfortunately, it appears the settlement discussions were not fruitful. The parties appeared in court *for*